

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

**Request for International Judicial Assistance Pursuant to the Hague Convention
of 18 March 1970 on the Taking of Evidence Abroad in Civil or Commercial Matters**

Sender:

Wook Chung
Montgomery McCracken Walker & Rhoads LLP
437 Madison Avenue
New York, New York 10022
Tel. 212-551-7795
wchung@mmwr.com

Central Authority of the Requested State:

Supreme Court of Singapore
1 Supreme Court Lane
Singapore 178879

Person to whom the executed request is to be returned:

Wook Chung
Montgomery McCracken Walker & Rhoads LLP
437 Madison Avenue
New York, New York, 10022
Tel. 212-551-7795
wchung@mmwr.com

Date by which the requesting authority requires receipt of the response to the Letter of Request:

The requesting authority, the FEDERAL MARITIME COMMISSION, New York, United States of America, requests that the receipt of the response to this Request be returned within the standard timeframe that the Supreme Court of Singapore has used to process such previous requests. This request is not made as an urgent request, but rather one to be handled within standard operating procedures.

IN CONFORMITY WITH ARTICLE 3 OF THE CONVENTION, THE UNDERSIGNED APPLICANT HAS THE HONOUR TO SUBMIT THE FOLLOWING REQUEST:

Requesting Judicial Authority:

THE FEDERAL MARITIME COMMISSION
The Honorable Alex M. Chintella
Administrative Law Judge

The above-mentioned Authority is making this Request to:

Supreme Court of Singapore
1 Supreme Court Lane
Singapore 178879

This Request is made under the following judicial proceeding:

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

DOCKET NO. 23-01

This Request is to be served upon:

Samsung SDS Asia Pacific PTE. LTD.
30 Pasir Panjang Road #16-31,
Mapletree Business City, 117440
Singapore

The evidence to be collected is as follows:

SCHEDULE A

I. DEFINITIONS

- a) “Complainant” and “SEA” shall refer to Samsung Electronics America, Inc., any and all of its corporate predecessors, corporate parents or affiliates, and any and all of its agents, representatives, contractor, insured, employees, attorneys, investigators, or other persons who have sought or obtained information on SEA’s behalf. Please review and reference the Complaint filed by SEA against SM Line attached in Appendix A of this subpoena.
- b) “You”, and “your” shall refer to Samsung SDS Asia Pacific Pte. Ltd. (“SDS”) or any other “doing business as” or “also known as” name(s) that you operate under, as well as any and all of its corporate predecessors, corporate parents or affiliates, and any and all of its agents, representatives, contractor, insured, employees, attorneys, investigators, or other persons who have sought or obtained information on SDS’s behalf.
- c) “SDS” shall refer to SDS Asia Pacific PTE. LTD. whose headquarter is in Singapore.
- d) “Logitech” shall refer to Samsung Electronics Logitech Co., Ltd., whose headquarter is located in South Korea.
- e) “SDSA” shall refer to Samsung SDS America, Inc., and any “also known as” or “doing business as” such as Samsung SDS Global SCL America Inc., or Samsung SDS SCL America, Inc., whose headquarter is located in United States.
- f) The word “document” means the full scope of documents and things discoverable under 46 CFR §502.146 and is used in its broadest sense to include, without limitation, contracts, books, statements of account, letters, notes, memoranda, printed forms, reports, communications (interoffice, intraoffice or otherwise), papers, cablegrams, mailgrams, telegrams, e-mails, radiograms, films, maps, statistical compilations, summaries, minutes, records, computerized documents, data, records and files sound recordings and transcriptions (telephone conversations, personal conversations, interviews, meetings, conferences, facts, conclusions, impressions and things similar to the foregoing), manuals, publications, diaries, telexes, engineering reports and plans, summaries of investigations, brochures, surveys, opinions and reports (of expert witnesses, appraisers or consultants), advertisements, circulars, trade letters, press releases, financial statements, opinions of counsel, corporate records, minutes of board of directors or committee meetings, correspondence, pamphlets, bills, agreements, checks, invoices, ledger sheets, studies, statements, data, and all other writings of any kind, however produced or reproduced, including all non-identical copies of such writings, whether printed, typed, recorded, filmed, stored in a computer media, written, produced by hand or by any other process, and whether an original, master, duplicate or copy, in whatever form and however and by whomever made.
- g) The word “Claim” means SEA’s alleged claim for violations as alleged in SEA’s Complaint.
- h) The word “Container(s)” means the containers that SEA claims being at issue in Complainant’s Claim, shall mean both loaded container(s) as well as empty container(s) after the said Shipments are unloaded or devanned.

- i) The word “Shipments” or “SEA Shipments” means the containers that SM Line actually or supposedly have transported or handled as alleged in SEA’s complaint. Unless otherwise expressly articulated, the word “containers” and the “shipments” should be mean the same.
- j) If You object to answering any particular request for documents based on a claim of privilege, please state the full basis of the objection with sufficient particularity so that the Federal Maritime Commission may, if necessary, determine the merits of your objection.
- k) Pursuant to 46 CFR 502.141(k), SDS is under a duty to supplement or amend its responses to include information subsequently acquired that is responsive to these requests for production.

II. INSTRUCTIONS

- a) Answers to these Requests for Production of Documents (“Requests” and each individually a “Request”), should be delivered to the offices of Montgomery McCracken Walker & Rhoads, LLP, by January 19, 2024.
- b) In responding to these Requests, SDS shall produce all requested documents in SDS’s possession, custody or control, and shall include all such documents in the possession, custody or control of SDS’s attorneys, or of any third party or parties to whom SDS has surrendered possession, custody or control, or who are acting on SDS’s behalf, or who have otherwise obtained possession, custody or control, or who, upon SDS’s request, would surrender possession, custody or control to Respondent.
- c) To the extent You claim You are unable to answer any Request, because a responsive document is unavailable, with respect to each such claim, state: (a) whether the document was ever available to you; (b) why the document is not available to you; and (c) if the document has been transferred to others or destroyed. Identify all persons involved in the transfer or destruction and describe specifically and in detail the circumstances under which such transfer or destruction occurred.
- d) If You have information that would permit a partial answer to a Request for Documents provide the partial answer that may be made with information available to you, and produce such business records, or any compilation, abstract or summary based thereon as will permit SM Line to derive or ascertain a more complete answer.
- e) If all the information furnished in answer to all or part of a Request for Documents is not available or within Your control identify such information and identify each person who has all or part of the information requested.
- f) If You withhold any responsive information or document based on an assertion of privilege, identify the information or documents withheld, state the grounds for the assertion of privilege, and state all facts pertaining to the assertion of privilege.
- g) This discovery request is continuing, and any document, information or knowledge obtained or located subsequent to your response hereto is to be supplied to Respondent’s counsel.

III. REQUESTS FOR DOCUMENTS

1. All documents and correspondence exchanged on its own, between, or amongst SDS and Logitech, including their respective parents, subsidiaries, affiliates, agents, vendors and contractors, as well as their subcontractors related to the Containers that SEA claims being at issue in SEA's Complaint, including but not limited to service contracts, service agreements, Requests for Proposal, quotes, letters of intent, delivery orders, work orders, instructions, requests, invoices, payment records, receipts, and any communications involving securing, providing, managing, handling, or dealing with any trucking service providers, truck dispatching service providers, truck operators, truck driver, rail terminals, sea/marine terminals, warehouses, container yards, depot yards, or any other similar shipping and logistics service providers.
2. All documents and correspondence exchanged on its own, between, or amongst SDS and SDSA, including their respective parents, subsidiaries, affiliates, agents, vendors and contractors, as well as their subcontractors related to the Containers that SEA claims being at issue in SEA's Complaint, including but not limited to service contracts, service agreements, Requests for Proposal, quotes, letters of intent, delivery orders, work orders, instructions, requests, invoices, payment records, receipts, and any communications involving securing, providing, managing, handling, or dealing with any trucking service providers, truck dispatching service providers, truck operators, truck driver, rail terminals, sea/marine terminals, warehouses, container yards, depot yards, or any other similar shipping and logistics service providers.
3. All documents and correspondence exchanged on its own, between, or amongst SDS and SEA, including their respective parents, subsidiaries, affiliates, agents, vendors and contractors, as well as their subcontractors related to the Containers that SEA claims being at issue in SEA's Complaint, including but not limited to service contracts, service agreements, Requests for Proposal, quotes, letters of intent, delivery orders, work orders, instructions, requests, invoices, payment records, receipts, and any communications involving securing, providing, managing, handling, or dealing with any trucking service providers, truck dispatching service providers, truck operators, truck driver, rail terminals, sea/marine terminals, warehouses, container yards, depot yards, or any other similar shipping and logistics service providers.
4. All documents and correspondence exchanged on its own, between, or amongst SDS and SM Line, including their respective parents, subsidiaries, affiliates, agents, vendors and contractors, as well as their subcontractors related to the Containers that SEA claims being at issue in SEA's Complaint, including but not limited to service contracts, service agreements, Requests for Proposal, quotes, letters of intent, delivery orders, work orders, instructions, requests, invoices, payment records, receipts, and any communications involving securing, providing, managing, handling, or dealing with any trucking service providers, truck dispatching service providers, truck operators, truck driver, rail terminals, sea/marine terminals, warehouses, container yards, depot yards, or any other similar shipping and logistics service providers.

5. All documents and correspondence exchanged on its own, between, or amongst SDS and any third party service providers, including but not limited to third party vendors, contractors, agents, and their respective parents, subsidiaries, affiliates, agents, vendors and contractors, as well as their subcontractors related to the Containers that SEA claims being at issue in SEA's Complaint, including but not limited to service contracts, service agreements, Requests for Proposal, quotes, letters of intent, delivery orders, work orders, instructions, requests, invoices, payment records, receipts, and any communications involving securing, providing, managing, handling, or dealing with any trucking service providers, truck dispatching service providers, truck operators, truck driver, rail terminals, sea/marine terminals, warehouses, container yards, depot yards, or any other similar shipping and logistics service providers.
6. All documents and correspondence exchanged on its own, between, or amongst SDS and any other persons or entities, related to the Containers that SEA claims being at issue in SEA's Complaint, including but not limited to service contracts, service agreements, Requests for Proposal, quotes, letters of intent, delivery orders, work orders, instructions, requests, invoices, payment records, receipts, and any communications involving securing, providing, managing, handling, or dealing with any trucking service providers, truck dispatching service providers, truck operators, truck driver, rail terminals, sea/marine terminals, warehouses, container yards, depot yards, or any other similar shipping and logistics service providers.
7. All documents and correspondences SDS exchanged with truckers, truck service providers, warehouse, warehouse service providers, and their respective or related person or entities that the SDS has, directly or indirectly, used, hired, worked with, or communicated with in shipping, importing, handling, and/moving the Containers as well as empty containers that SEA claims being at issue in SEA's Complaint.
8. All documents and correspondence related to the shipment, importing, handling, or any movement of the Containers, including delivery services that SEA claims being at issue in SEA's Complaint.
9. All documents and correspondence related to the return of the Containers that SEA claims being at issue in SEA's Complaint.
10. All documents and correspondence related to demurrage and detention charges, as well as any other types of charges or fees (such as pre-pull, storage, chassis fees, surcharges, or fees) for each of the Containers that SEA claims being at issue in SEA's Complaint.
11. All documents and correspondence related to questioning, disputing, challenging, or requesting of discounts for or waiver of the demurrage and detention charges or any other types of charges or fees (such as pre-pull, storage, chassis fees, surcharges, or other related fees) for each of the Containers that SEA claims being at issue in SEA's Complaint.
12. All documents and correspondence exchanged between or among SDS and the rail terminals that handled the Containers that SEA claims being at issue in SEA's Complaint.
13. All documents and correspondence exchanged between or among SDS and the sea/ocean terminals that handled the Containers that SEA claims being at issue in SEA's Complaint.

14. All of SDS's shareholder and board of directors' information for the last four (4) years.
15. All of SDS's audited financial statements for the last four (4) years.
16. All of SDS's periodic, unaudited financial reports and drafts thereof prepared in the ordinary course of business in the last four (4) years including but not limited to, for example, quarterly balance sheets, net income statements, and profit and loss statements.
17. All financial information, reports, presentations, analyses, or similar Documents provided to SDS's board of directors and officers for the last four (4) years.
18. All financial records relating to any sums paid by SDS or by its subsidiary, affiliate, contractor, or agent related to the Containers that SEA claims being at issue in SEA's Complaint as well as or any account payable information related to SEA Shipments.
19. All financial records relating to any sums received by SDS or by its subsidiary, affiliate, contractor, or agent related to the Containers that SEA claims being at issue in SEA's Complaint as well as or any account receivable information related to SEA Shipments.

The request should be fulfilled by Samsung SDS Asia Pacific PTE. LTD. within a time period upon receipt of this Request that is as expedient as possible as to not delay the trial between Complainant and Respondent. Complainant's attorneys agree to facilitate this expedient request as easily as possible with the Authorities. Any written responses and documents, which are acceptable in physical or electronic format, to this Request should be sent to:

Wook Chung
Montgomery McCracken Walker & Rhoads LLP
437 Madison Avenue
New York, New York, 10022
Tel. 212-551-7795
wchung@mmwr.com

Any fees and/or costs that are incurred as a result of the production ordered under this Request will be ordered to be paid by:

Wook Chung
Montgomery McCracken Walker & Rhoads LLP
437 Madison Avenue
New York, New York, 10022
Tel. 212-551-7795
wchung@mmwr.com

Further, this Court offers reciprocity to the Singapore's court, should they ever need assistance in the United States.

This Request is hereby made on this ____ Day of _____, 20__.

The Honorable Alex M. Chintella
Judge, Administrative Law Judge
Before the Federal Maritime Commission

Formal Seal of the Court:

Clerk of Court
Before the Federal Maritime Commission